

Court No. - 34

Case :- FIRST APPEAL No. - 179 of 2006

Petitioner :- Mahaver Cement Works Pvt. Ltd.

Respondent :- U.P. Power Corporation Ltd. And Another

Petitioner Counsel :- Rajiv Kumar Saini

Respondent Counsel :- Ms.Usha Kiran,W'H;Khan

Hon'ble Prakash Chandra Verma,J.

Hon'ble Bala Krishna Narayana,J.

Heard learned counsel for the appellant, Ms Usha Kiran, learned counsel for the respondents.

Admit.

This First Appeal has its genesis from the judgement and decree dated 10.2.2006 passed by Addl. District Judge, Room No. 7, Saharanpur dismissing the Original Suit No. 581 of 1995 filed by the plaintiff-appellant against the defendant-respondents for a decree for permanent prohibitory injunction restraining the defendants-respondents from disconnecting the plaintiff-appellant's electricity connection and from recovering certain electricity dues from the plaintiff-appellant.

Learned Trial Court dismissed the suit holding that the plaintiff appellant was not entitled to a decree for permanent injunction restraining the defendants-respondents from disconnecting his power supply and from recovering the electricity dues from the plaintiff appellant. It was also held by the learned Trial Court that the suit was barred by the Principle of Estoppel and the plaintiff appellant was not entitled to any relief.

A preliminary objection has been raised on behalf of the defendants-respondents before this Hon'ble Court that the suit giving rise to the present first appeal was barred by the provisions of Section 331 of the UPZA&LR Act 1950 (hereinafter referred to as the "Act") as the electricity dues, in respect of which plaintiff appellant is seeking a permanent prohibitory injunction, are being recovered as arrears of land revenue.

Learned counsel for the defendants-respondents further submitted that the plaintiff-appellant's suit was also barred under the provision of Section 4 of UP Government Electrical Undertaking (Dues Recovery) Act 1958.

Learned counsel for the plaintiff-appellant totally failed to meet the preliminary objection raised on behalf of the defendants respondents

regarding the maintainability of the suit before the Civil Court at the behest of the plaintiff-appellant. However a prayer was made on behalf of the learned counsel for the appellant that in case this Court is inclined to dismiss the instant first appeal on the ground that the suit giving rise to the present appeal is barred under the provisions of Section 330 of the Act and the Section 4 of the UP Government Electrical Undertaking (Dues Recovery) Act, 1958, in that case, the plaintiff-appellant may be given liberty to raise his grievance before the forum available under the Electricity Act and the Electricity Supply Code 2005.

We have considered the submissions made on behalf of the parties.

It is not in dispute that the electricity dues in respect of which the plaintiff-appellant has sought permanent prohibitory injunction are being recovered as arrears of land revenue. Recovery as arrears of land revenue is made under the provisions of UPZA&LR Act and the rules framed therein.

Section 330 (c) of the Act provides that the assessment or collection of land revenue under Chapter X or the recovery of any sum of money recoverable as arrears of land revenue.

Similarly Section 4 of the UP Government Electrical Undertaking (Dues Recovery) Act 1958 (hereinafter referred to as the "1958 Act") stipulates that where a notice of demand has been served on the consumer, or his authorised agent, under Section 3, he may, if he deny his liability to pay the dues or any part thereof and upon deposit thereof with the prescribed authority under protest in writing, institute a suit for the refund of the dues or part therefore so deposited.

The suit referred to in sub-Section (1) may be instituted at any time within six months from the date of deposit with the prescribed authority in the Court having jurisdiction, but subject to the result of the suit. The notice of demand shall be conclusive proof of the dues mentioned therein. Admittedly the plaintiff-appellant has not deposited the electricity dues as required by Section 4 of the 1958 Act and hence the suit for permanent prohibitory injunction restraining the defendants respondents from recovering the electricity dues from the plaintiff-appellant is not maintainable.

Learned counsel for the plaintiff-appellant has failed to demonstrate that the suit in question is not barred under the provisions of the aforesaid Acts.

In view of above we have no hesitation in holding that the suit filed by the

plaintiff-appellant giving rise to the first appeal was clearly barred by the provisions of Section 331 of the Act and Section 4 of the UP Government Electrical Undertaking (Dues Recovery) Act 1958.

For the reasons given herein above, the instant first appeal is liable to be dismissed and is accordingly dismissed. Interim order dated 6.4.2006 is hereby discharged. However, liberty is given to the plaintiff appellant to approach the UP Power Corporation by filing a suitable representation to get the dispute resolved before the appropriate forum established under the Electricity Act 2003 & the Electricity Supply Code 2005.

Order Date :- 10.7.2009

RKS/